

STATE OF NEW MEXICO
COUNTY OF DOÑA ANA
MAGISTRATE COURT (ANTHONY)

STATE OF NEW MEXICO,
Plaintiff,

v.

CHRISTOPHER ARTHUR DOMINGUEZ,
Defendant.

Case No: M-15-FR-202600009

DEFENDANT'S MOTION PACKET (DISCOVERY, SUPPRESSION, DISMISSAL, CONTINUANCE)

COMES NOW the Defendant, Christopher Arthur Dominguez, appearing pro se, and respectfully submits the following motions:

I. DEFENDANT'S DEMAND FOR DISCOVERY

Pursuant to Rule 6-501 NMRA, Defendant requests disclosure of the following:

1. All police reports, incident reports, and supplemental reports;
2. All body camera, dash camera, or surveillance footage;
3. All witness statements and recordings;
4. Names and contact information of all witnesses;
5. Any physical evidence collected;
6. Any laboratory testing, analysis, or pending lab reports;
7. Any statements allegedly made by Defendant;
8. Any exculpatory or impeachment evidence;

Defendant requests prompt disclosure in advance of the Preliminary Examination scheduled for May 27, 2026, to allow adequate preparation.

II. MOTION TO SUPPRESS EVIDENCE

Defendant moves to suppress evidence obtained in violation of constitutional protections.

A. FACTUAL BASIS

The alleged controlled substance forming the basis of this charge was discovered during the execution of an arrest warrant related to a separate domestic matter.

B. LEGAL BASIS

1. The search conducted exceeded the lawful scope of a search incident to arrest;
2. Any search conducted beyond Defendant's person or immediate control required a warrant or valid exception;
3. Any evidence obtained prior to a lawful custodial arrest is invalid;
4. Any consent, if alleged, was not freely and voluntarily given;

C. CONSTITUTIONAL GROUNDS

Such conduct violates:

- The Fourth Amendment to the United States Constitution;
- Article II, Section 10 of the New Mexico Constitution;

D. RELIEF REQUESTED

Defendant respectfully requests suppression of all evidence obtained as a result of unlawful search and seizure.

III. MOTION TO DISMISS

Defendant moves to dismiss the complaint for lack of sufficient factual basis.

A. GROUNDS

1. The complaint fails to establish knowing possession;
2. The State has not demonstrated a clear nexus between Defendant and the alleged substance;
3. The allegations rely on conclusory statements rather than specific facts;

B. RELIEF REQUESTED

Dismissal of the charge in the interest of justice.

IV. MOTION TO CONTINUE PRELIMINARY EXAMINATION

Defendant requests a continuance of the Preliminary Examination currently set for May 27, 2026.

A. BASIS

1. Discovery remains incomplete;
2. Laboratory analysis may be pending;
3. Additional time is required to review evidence and prepare defense;

B. RELIEF REQUESTED

Rescheduling of the Preliminary Examination to ensure a fair proceeding.

V. GENERAL ASSERTIONS

Defendant asserts that:

- He is complying with all conditions of release;
 - He intends to appear at all hearings;
 - He seeks a fair opportunity to review and challenge the State's evidence;
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VI. CONCLUSION

WHEREFORE, Defendant respectfully requests that this Court:

1. Order the State to provide full discovery;
 2. Suppress unlawfully obtained evidence;
 3. Dismiss the complaint if legally insufficient;
 4. Grant a continuance if necessary for adequate preparation;
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Respectfully submitted,

Christopher Arthur Dominguez
P.O. Box 2300
Anthony, New Mexico 88021
(915) 850-6554

Date: ____

CERTIFICATE OF SERVICE

I certify that a copy of the foregoing was provided to the District Attorney's Office for the Third Judicial District.

Christopher Arthur Dominguez

Date: ____